

24CHCV01166 24CHCV01166

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24CHCV01166 Hearing Date: September 24, 2026 Dept: F43

Dept. F43

Hearing Date: 09-24-26

Case # 24CHCV01166, Jimenez, et
al. v. American Honda Motor, Co., Inc., et al.

Trial Date: N/A

MOTION FOR ATTORNEY
FEES, COSTS, AND EXPENSES

MOVING PARTIES: Plaintiffs Moises Garcia Jimenez and Juana
Galindo

RESPONDING PARTY: No opposition was filed.

RELIEF REQUESTED

Order awarding plaintiffs \$27,927.43 in
attorney fees, costs, and expenses:
\$25,212.50 in attorney fees; \$2,714.93 in costs and expenses; and a 1.5x
or 2.2x lodestar enhancement.

RULING: Motion is granted in the reduced amount of
\$25,374.93: \$22,660 in attorney's fees
and \$2,714.93 in costs and expenses. The
court denies the request for a lodestar enhancement.

SUMMARY OF ACTION

Plaintiffs Moises Garcia Jimenez and Juana

Galindo (Plaintiffs) filed this lemon law action against defendants American Honda Motor Company, Inc. (Honda) and Boeckmann Automotive, LLC dba Galpin Honda (Boeckmann), asserting two violations of the Song-Beverly Consumer Warranty Act, a violation of Civil Code section 1632, and a negligent repair claim. Plaintiffs allege several defects with their 2019 Honda Odyssey. Honda filed an answer, and Boeckmann filed a demurrer and an answer. Plaintiffs subsequently dismissed their claim for a violation of Civil Code section 1632 and dismissed defendant Boeckmann.

On May 4, 2026, Plaintiffs accepted Honda's

Section 998 Offer to compromise pursuant to which Honda agreed to pay Plaintiffs \$51,885.23 and attorney's fees, costs, and expenses pursuant to Civil Code section 1794, subdivision (d).

Judgment was entered as to Plaintiffs and Honda on May 8, 2026. Plaintiffs served notice of the entry of judgment on May 20, 2026.

Plaintiffs filed and served their memorandum of costs on June 2, 2026, seeking \$2,714.93.
(6/02/2026 Memorandum of Costs.)

On July 17, 2026, Plaintiffs filed the instant motion seeking \$27,927.43 in attorney fees, costs, and expenses and either a 1.5x or 2.2x lodestar enhancement.
No opposition has been filed.

On August 13, 2026, Honda's counsel filed a Notice of Change in Law Firm Affiliation, indicating Honda's counsel is now affiliated with Nelson Mullins Riley & Scarborough LLP and a new address and method for service.

ANALYSIS

A. Awarding Attorney Fees

A prevailing party is entitled to recover its attorneys' fees when authorized by contract, statute, or law. (See Code Civ. Proc., § 1033.5, subd.

(a)(10); Civ. Code, § 1717, subd. (a).)

“A successful party means a prevailing party, and [a party] may be considered prevailing parties for attorney’s fees purposes if they succeed on any significant issue in litigation which achieves some of the benefit the parties sought in bringing suit.” (Bowman v. City of Berkeley (2005) 131 Cal.App.4th 173, 178.) If a buyer prevails in a Song-Beverly action, then the buyer is allowed to recover attorney fees. (Civ. Code, § 1794, subd. (d).)

Because Plaintiffs are “buyers” and this matter settled in their favor, Plaintiffs are the prevailing parties entitled to attorney’s fees, costs, and expenses pursuant to Civil Code section 1794(d).

1.

Hourly Rates

Plaintiffs seek attorney hourly rates of \$475 to \$750, law clerk hourly rates of \$250, and paralegal hourly rates of \$200 to \$225. (Declaration of Shawna M. Melton ¶ 10.) To support the rates, attorney Shawna M.

Melton provides a summary of each staff member’s tasks, titles, and sometimes qualifications; citations to several rulings approving similar rates; and hourly rates for attorneys who have practiced law since the 1980s and 1990s. (Melton Decl. ¶ 7(a)-(k), 12(a)-(p), Exhs. 7-22.)

No opposition was filed.

“The reasonable hourly rate is that prevailing in the community for similar work.” (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) The moving party bears the initial burden of establishing the prevailing market “through its own affidavits.” (MBNA Am. Bank, N.A. v. Gorman (2006) 147 Cal.App.4th Supp. 1, 13.) Once the moving party presents competent evidence of prevailing rates, the burden shifts to the opposing party. The opposing party may present rulings which concern hourly rates for comparable work from the relevant legal market. (Bronshteyn v. Dept. of Consumer Affairs (2025) 114 Cal.App.5th 537, 543, 546-547; Baer v. Tedder (2025) 115 Cal.App.5th 1139, 1160-1162.) The court must engage in an objective analysis “to determine the prevailing rate in the community for comparable professional legal services[.]” (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 156, citation omitted.) The court may “consider the attorney’s skill

as reflected in the quality of the work, as well as the attorney's reputation and status." (MBNA Am. Bank, N.A., supra, 147 Cal.App.4th Supp. at p. 13.)

After reviewing Plaintiffs' supporting declarations, rulings, and the Laffey Matrix, the court finds that the hourly rates are reasonable.

Attorney

Requested Hourly Rate

Approved Hourly Rate

Mark O'Connor

\$750

\$750

Shawna M. Melton

\$650

\$650

Elizabeth Meehan

\$500

\$500

Louis Aguirre

\$475

\$475

Law Clerk

Requested Hourly Rate

Approved Hourly Rate

Kimya Assadkhan

\$250

\$250

Paralegal

Requested Hourly Rate

Approved Hourly Rate

Rebecca Goethals

\$225

\$225

David Womack

\$200

\$200

2. Billing Entries

Plaintiffs request fees for 60.8 hours of attorney, law clerk, and paralegal work, including hours incurred in connection with the instant motion. Defendant Honda does not oppose.

The Song-Beverly Consumer Act only entitles Plaintiffs to attorney fees for “actual time expended.”

(Civ. Code, § 1794, subd. (d).)

This means an analysis as to whether the fees and costs sought are reasonable under the circumstances is required.

(Levy v. Toyota Motor Sales, USA, Inc. (1992) 4 Cal.App.4th 807, 816.) “A prevailing buyer has the burden of ‘showing that the fees incurred were ‘allowable,’ were reasonably necessary to the conduct of the litigation and were ‘reasonable in amount.’” (Hanna v. Mercedes-Benz USA, LLC (2019) 36 Cal.App.5th 493, 507, citations omitted.) A verified fee bill is prima facie evidence that the services listed were necessarily incurred. (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) If a fee request is opposed, “[g]eneral arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Premier Med. Mgmt. Sys. v. Cal. Ins. Guarantee Ass’n (2008) 163 Cal.App.4th 550, 564.) Once an objection to the fees has been raised, then plaintiff’s counsel bears the burden of showing that the fees were reasonably necessary, and the court has the discretion to reduce fees awarded. (En Palm, LLC v Teitler Family Trust (2008) 162 Cal.App.4th 770, 775.)

In determining the reasonableness of fees, courts look to the factors from Church of Scientology v. Wollersheim (1996) 42 Cal.App.4th 628, disapproved on other grounds by Equilon Enters. v. Consumer Cause, Inc. (2002) 29 Cal.4th 53, 68 fn.5.

The factors from Wollersheim are (1) the amount of money involved in the litigation; (2) the nature of the litigation and its difficulty and the intricacies and importance of the litigation; (3) the skill required and employed in handling the litigation, the necessity for skilled legal training and ability in trying the case, and counsel’s education and experience in the particular type of work involved; (4) the attention given to the case; (5) the success of the attorneys efforts; and (6) the time consumed by the litigation. (Id.)

After reviewing the attached billing statement the court reduces attorney hours by 4.4 hours and paralegal hours by 1.6 hours because several entries involve clerical tasks such as receiving documents, several entries appear excessive based on the skill and qualifications discussed in the supporting declarations, and no opposition or reply were filed.

Attorney

Requested Hours

Approved Hours

Approved

Rate

Total

Mark O'Connor

4.4

4.4

\$750

\$3,300

Shawna M. Melton

9.6

9.6

\$650

\$6,240

Elizabeth Meehan

17.3

13.2

\$500

\$6,600

Louis Aguirre

1.9

1.6

\$475

\$760

Law Clerk

Requested Hours

Approved Hours

Approved

Rate

Total

Kimya Assadkhan

4.8

4.8

\$250

\$1,200

Paralegal

Requested Hours

Approved Hours

Approved

Rate

Total

Rebecca Goethals

14.4

12.8

\$225

\$2,880

David Womack

8.4

8.4

\$200

\$1,680

Total approved attorney and paralegal fees: \$22,660

3. Lodestar Enhancement

After determining an appropriate lodestar figure, the court may determine whether that figure should be adjusted with a positive or negative multiplier. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 997.) Whether a multiplier or negative multiple is appropriate depends on several factors, including (1) the risks presented by the litigation; (2) the novelty and difficulty of the legal and factual issues involved; (3) the results obtained on behalf of the plaintiff; and (4) the skill exhibited by counsel. (*Consumer Privacy Cases* (2009) 175 Cal.App.4th 545, 556.) "The 'results obtained' factor can properly be used to enhance a lodestar calculation where [1] an exceptional effort produced [2] an exceptional benefit." (*Graham v. DaimlerChrysler Corp.* (2005) 34 Cal.4th 553, 582.)

Plaintiffs propose a 1.5x (\$11,330) and 2.0x (\$22,660)

lodestar enhancement. The court rejects both.

Plaintiffs contends they are entitled to a multiplier because counsel took this case on contingency, with counsel risking two years of effort and advancing costs against the possibility of no recovery. (Mot. at p. 10:1-6.)

The court finds Plaintiffs' argument does not support applying a multiplier because this is a simple Song-Beverly matter that was settled in a little over two years and the matter presented no complex or novel legal issues.

Therefore, the court denies Plaintiffs' request to apply a multiplier.

B. Costs and Expenses

Plaintiffs ask the court to award costs of \$2,714.93. (6/02/2026 Memorandum of Costs.) Defendant Honda does not challenge or oppose the cost memorandum.

"A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk[.] The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case." (Cal. Rules of Court, rule 3.1700(a)(1).) Under the law, the court presumes a verified memorandum of costs is correct. However, a party may contest the costs that a prevailing party seeks. (Code Civ. Proc., § 1034 subd. (a).) The challenging party has the burden of demonstrating that those costs are unreasonable or unnecessary. (Adams v. Ford Motor Co. (2011) 199 Cal.App.4th 1475, 1486.)

Because Plaintiffs' request is unopposed, the court grants Plaintiffs' request for \$2,714.93 in costs.

CONCLUSION and ORDER

Plaintiffs' motion is granted in the reduced amount of \$25,374.93: \$22,660 in attorney's fees and \$2,714.93 in costs and expenses.

The court denies the request for a lodestar enhancement.

Plaintiffs to give notice.